**2025 Y L R 2784**

**[Islamabad]**

**Before Muhammad Asif, J**

**FAZAL RAHEEM---Petitioner**

**Versus**

**RENT CONTROLLER (EAST), ISLAMABAD and another---Respondents**

Writ Petition No. 2385 of 2025, decided on 4th August, 2025.

**(a) Islamabad Rent Restriction Ordinance (IV of 2001)---**

----Ss.17(8) & 21(1)---Constitution of Pakistan, Art.199---Constitutional petition by tenant against interim order of rent controller directing to deposit rent---Maintainability---Appeal against interlocutory orders---Legislative bar---Effect---Constitutional petition not maintainable when remedy of appeal against interlocutory orders is prohibited by law---Non-interference by High Court against interlocutory order of rent controller---'Raison d'etat'---Petitioner/tenant still retains a right to contest the ejectment petition on all available grounds and to challenge the final order through proper legal channel---Brief facts were that petitioner (tenant) entered into a rent agreement with respondent No.1(landlord)---Later the landlord initiated ejectment proceedings before the rent controller on grounds of default in rent, personal need, and breach of lease, leading to an interim order being passed by the rent controller directing the petitioner (tenant) to deposit Rs.436,000 for May - June 2025 and future rent at Rs.218,000 per month---Aggrieved, the petitioner filed the present writ petition claiming dispossession, unlawful interference, and arbitrary interim directions prejudicing his tenancy rights---Principle question requiring determination by the High Court was as to "whether the impugned interim order passed by the rent controller under S.17(8) of the Islamabad Rent Restriction Ordinance, 2001 (the Ordinance) was amenable to interference in the exercise of Constitutional jurisdiction under Article 199 of the Constitution" ?---Held: Rent controller in issuing the impugned direction to deposit rent acted strictly in accordance with S.17(8) of the Ordinance 2001---The impugned order did not conclusively determine any rights of the parties, nor did it dispose of the ejectment petition, rather it merely ensured compliance with statutory requirement during pendency---Therefore, by its nature, the order was interlocutory and procedural---Further, S.21(1) of the Ordinance provided for a statutory right of appeal only against final orders of the rent controller---Subsection (2) of S.21 of the Ordinance categorically barred appeals against interlocutory orders, therefore, entertaining the constitutional petition would be against the legislative intent---In the present case, the petitioner did not demonstrate that the impugned order suffered from any such jurisdictional defect or patent illegality---Moreover, assertion that the petitioner was illegally dispossessed by installation of an iron gate pertained to a factual dispute that squarely fell within the domain of the rent controller and / or the civil court where the petitioner had already instituted a suit---Interim direction requiring the petitioner (tenant) to deposit rent did not

determine the issue of default nor did it conclusively adjudicate any factual or legal rights---Petition still retained the right to contest the ejectment petition on all available grounds, to produce evidence, and to challenge any final adverse order through proper legal channels---Hence, no irreparable injury or denial of due process was evidenced from the record that would have justified invocation of constitutional jurisdiction at the interlocutory stage---In light of a clear statutory bar under S.21 of the Ordinance 2001 and the judicial principles laid down by the Supreme Court regarding non-interference with interlocutory orders of statutory tribunals, present constitutional petition was not maintainable, as such, same was dismissed.

**(b) Islamabad Rent Restriction Ordinance (IV of 2001)---**

---Ss.17(8) & 17(9)---Tenant to deposit arrears of rent and regular monthly rent---Requirement---Duty of tenant---Purpose and scope---Failure to deposit amount of rent by tenant---Effect and consequences stated---Section 17(8) of the Ordinance 2001 expressly empowers the rent controller at the outset of rent proceedings to direct the tenant to deposit all rent due and to continue depositing monthly rent regularly during the pendency of the matter---The purpose of this provision is to ensure the deposition of rent amount to the landlord before the specified date and time during prolonged litigation and to discourage frivolous or dilatory tactics by tenants---Moreover, S.17(9) of the Ordinance provides that if the tenant fails to comply with such direction, his defence may be struck off and the landlord may be placed in possession of the property without further proceedings---These provisions reflect the legislative intent to maintain the balance of rights and obligations between landlords and tenants, and to avoid unnecessary prejudice to either party during litigation.

**(c) Constitution of Pakistan---**

----Art.199---Islamabad Rent Restriction Ordinance (IV of 2001), S.21(1)---Eviction petition---Interlocutory order passed by Rent Controller---Appeal against interlocutory orders, prohibition of---Legislative bar---Constitutional jurisdiction of the High Court, invoking of---Limitations and scope---It is trite principle of law that when a statute excludes a remedy of appeal, the legislative bar must be strictly observed---It would be contrary to both the legislative intent and judicial discipline to permit constitutional interference in cases where the statute has expressly prohibited any appellate or revisional challenge---Entertaining a writ petition in such a situation would amount to defeating the very purpose of the special rent forum and would undermine the efficiency of rent regulation mechanisms established by law---Allowing constitutional petitions against interim directions would defeat the very objective of the special rent regime, which is designed to ensure expeditious and economic resolution of landlord-tenant disputes---Every procedural direction would then be subject to challenge before the High Court, leading to unnecessary delays and forum shopping.

**(d) Constitution of Pakistan---**

----Art.199---Constitutional petition against interlocutory or procedural orders---Maintainability and scope---Constitutional jurisdiction under Art.199 of the Constitution is not meant to be invoked against every interlocutory or procedural order passed by statutory or special tribunals---High Courts must exercise restraint in interfering with interim orders of tribunals, and such intervention is warranted only when the impugned order is either patently without jurisdiction, suffers from a manifest illegality, or results in grave injustice.

PLD 2005 SC 173; 1999 SCMR 819; 1993 SCMR 1853; PLD 1975 SC 457 and 2006 MLD 1468 rel.

Muzzamil Hussain Shad for Petitioner.

Zahid Farooq Cheema for Respondent No. 2.

Date of hearing: 30th June, 2025.

**JUDGMENT**

**MUHAMMAD ASIF, J.---**Through the instant writ petition, the petitioner has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 ("the Constitution"), seeking the following relief:

"In the circumstances, it is, most humbly prayed that the instant writ petition may kindly be accepted, the impugned order dated 12.06.2025 may graciously be set aside and respondent No.2 may kindly be directed to remove the iron gate which he illegally installed on the front entrance of the rented premises and forcibly blocked the TRUE entrance of the rented premises. Further prayed that respondent No.2 may graciously be directed to handover the possession of the rented premises to the petitioner along with all the rights and privileges.

Further prayed respondent No.1 may graciously be restrain from claiming the rent of the rented premises since the installation of iron in front of the main entrance of the rented premises till restoration of the possession of the petitioner over the rented premises along with all the rights, privileges and easements as legal and lawful tenant.

Any other relief which this Honorable Court deems fit and proper may also be awarded in favor of the petitioner and against the respondent No.1."

2. Briefly stated, the facts, as narrated by the petitioner, are that he entered into a rent agreement with Respondent No.1 on 23.04.2022 for tenancy of a hall situated on the first floor of Plaza No.167, Phase-IV, Civic Center, Bahria Town, Islamabad ("the rented premises"). The monthly rent was settled at Rs.180,000/-, and the tenancy was agreed for a period of five years from 01.05.2022 to 30.04.2027. An amount of Rs.320,000/- was paid by the petitioner as security at the time of execution of the agreement. Subsequently, the petitioner claims to have invested a substantial amount of Rs.20,000,000/- on furniture and fixtures. On 05.04.2025, without serving any eviction notice, Respondent No.2 allegedly installed a new iron gate at night in front of the entrance to the rented premises, thereby locking and blocking access, causing

disruption to the petitioner's business operations and loss of clientele. The petitioner avers that he has been regularly paying rent and utility bills and is not a defaulter in any manner. However, Respondent No.2 initiated ejectment proceedings before the learned Rent Controller (East), Islamabad ("Respondent No.1"), on the grounds of rent default, personal need, and alleged breach of the lease agreement. Simultaneously, the petitioner also instituted a civil suit before the learned Senior Civil Judge (East), Islamabad, against Respondent No.2. In response to the ejectment petition, the petitioner submitted a written reply, denying all allegations. The learned Rent Controller, vide interim order dated 12.06.2025, directed the petitioner to deposit Rs.436,000/- as rent for May and June 2025 in the court's account and to continue depositing future rent at the agreed rate of Rs.218,000/- per month before the 5th of each month. The order warned that failure to comply would result in striking off the petitioner's defence under Section 17(9) of the Islamabad Rent Restriction Ordinance, 2001 ("the Ordinance 2001"). Aggrieved by the said interim order, the petitioner has filed the present writ petition.

3. Learned counsel for the petitioner argued that the impugned interim order was passed without proper appreciation of facts and without affording a fair opportunity to the petitioner. It was contended that a separate civil suit, already filed by the petitioner, establishes the existence of a valid tenancy and consistent payment of rent. The learned Rent Controller, erred in assuming rent default without verifying the record or affording the petitioner an opportunity to prove otherwise. The direction to deposit rent, particularly at an interim stage, was argued to be arbitrary, premature, and prejudicial to the petitioner's rights. He further submitted that the petitioner's alleged dispossession was in violation of Section 9 of the Specific Relief Act, 1877. He maintained that the impugned order had been passed in a cursory and mechanical manner, without fulfilling the legal prerequisites. The petitioner, having no alternate efficacious remedy, was compelled to invoke the constitutional jurisdiction of this Court. The learned counsel prayed for setting aside the impugned order and for a direction to the Rent Controller to proceed strictly in accordance with law after recording evidence.

4. Conversely, learned counsel for the respondent No.2 opposed the petition and contended that the impugned order is interlocutory in nature and not amenable to challenge in constitutional jurisdiction. It was argued that the Rent Controller is legally empowered to pass interim directions to ensure fair proceedings and to safeguard the rights of landlords, including the deposit of rent. He submitted that the petitioner had been adopting delaying tactics and had defaulted in rent payment despite repeated demands. The impugned order is procedural, not final, and merely requires deposit of rent during the pendency of proceedings. If the petitioner ultimately succeeds, any excess deposit would be adjusted or refunded accordingly. No irreparable loss or Ad prejudice is caused. He relied upon Section 21 (2) of the Ordinance 2001, which bars appeals against interlocutory orders and urged for dismissal of the writ petition as being not maintainable.

5. I have heard the learned counsel for the parties at considerable length and examined the material placed on the record. The principal issue requiring determination by this Court is whether the impugned interim order dated 12.06.2025, passed by the learned Rent Controller under Section 17(8) of the

Islamabad Rent Restriction Ordinance, 2001 ("the Ordinance of 2001"), is amenable to interference in the exercise of this Court's constitutional jurisdiction under Article 199 of the Constitution.

6. The petitioner has essentially challenged an interim procedural direction issued by the learned Rent Controller requiring him to deposit arrears of rent for the months of May and June 2025, and to continue depositing monthly rent regularly during the pendency of rent proceedings. The learned Rent Controller has also forewarned the petitioner that failure to comply would entail consequences under Section 17(9) of the Ordinance, including the striking off of his defence.

7. In order to appreciate the legality of the impugned direction, it is necessary to examine the statutory framework under which the order has been passed. Section 17(8) of the Ordinance of 2001 expressly empowers the Rent Controller, at the outset of rent proceedings, to direct the tenant to deposit all rent due and to continue depositing monthly rent regularly during the pendency of the matter. The purpose of this provision is to ensure the deposition of rent amount to the landlord before the specified date and time during prolonged litigation and to discourage frivolous or dilatory tactics by tenants. The relevant portion of Section 17(8) reads as follows:

"17.Eviction of Tenant-

(1)....

(2)----

(3)....

(4)---

(5)---

(6)----

(7)----

(8) In proceedings under this section on the first date of hearing, or as soon thereafter as may be but before the issues are framed, the Controller shall direct the tenant to deposit in his office before a specified date all the rent due from him and also to deposit regularly till the final decision of the case before the fifteenth of each month, the monthly rent which subsequently becomes due, and if there be any dispute as to the amount of rent due, the Controller shall determine such amount approximately.

(9) If the tenant fail to deposit the amount of rent before the specified date or, as the case may be, before the fifteenth day of the month, his application if he is an application shall be dismissed or his defence, if he is a respondent, shall be struck off, and the landlord shall be put in possession of the building without any further proceedings."

8. Section 17(9) of the Ordinance provides that if the tenant fails to comply with such direction, his defence may be struck off and the landlord may be placed in possession of the property without further proceedings. These provisions reflect the

legislative intent to maintain the balance of rights and obligations between landlords and tenants, and to avoid unnecessary prejudice to either party during litigation.

9. The learned Rent Controller, in issuing the impugned direction, acted strictly in accordance with Section 17(8) of the Ordinance 2001. The order does not conclusively determine any rights of the parties, nor does it dispose of the ejectment petition; it merely ensures compliance with statutory requirements during pendency. Therefore, by its nature, the order is interlocutory and procedural.

10. Section 21(1) of the Ordinance of 2001 provides for a statutory right of appeal only against final orders of the Rent Controller. The subsection (2) of Section 21 categorically bars appeals against interlocutory orders. The relevant provisions are reproduced for ready reference:

> "21.Appeal----(1) Any party aggrieved by a final order of the Controller made under this Ordinance may, within thirty days of the date of such order, prefer an appeal to the District Judge. (2) No appeal shall lie from an interlocutory order passed by the Controller."

11. It is a trite principle of law that when a statute excludes a remedy of appeal, the legislative bar must be strictly observed. It would be contrary to both the legislative intent and judicial discipline to permit constitutional interference in cases where the statute has expressly prohibited any appellate or revisional challenge. Entertaining a writ petition in such a situation would amount to defeating the very purpose of the special rent forum and would undermine the efficiency of rent regulation mechanisms established by law.

12. The superior courts of Pakistan have consistently held that constitutional jurisdiction under Article 199 of the Constitution is not meant to be invoked against every interlocutory or procedural order passed by statutory or special tribunals. In PLD 2005 SC 173, the Hon'ble Supreme Court held that High Courts must exercise restraint in interfering with interim orders of tribunals, and such intervention is warranted only when the impugned order is either patently without jurisdiction, suffers from a manifest illegality, or results in grave injustice. Similar principles were reiterated in 1999 SCMR 819, 1993 SCMR SCMR 1853, PLD 1975 SC 457 and 2006 MLD 1468.

13. In the present case, the petitioner has not demonstrated that the impugned order suffers from any such jurisdictional defect or patent illegality. The contention that the order was passed without a hearing or appreciation of facts is factually incorrect, as the Rent Controller was acting within the statutory command of Section 17(8) of the Ordinance 2001. Moreover, the assertion that the petitioner was illegally dispossessed by installation of an iron gate pertains to factual disputes that fall squarely within the domain of the Rent Controller and/or the civil court where the petitioner has already instituted a suit.

14. The interim direction requiring the petitioner to deposit rent does not determine the issue of default, nor does it conclusively adjudicate any factual or legal rights. The petitioner retains the right to contest the ejectment petition on all available grounds, to produce evidence, and to challenge any final adverse order

through proper legal channels. Hence, no irreparable injury or denial of due process is evident from the record that would justify invocation of constitutional jurisdiction at this interlocutory stage.

15. The argument that the petitioner's alleged dispossession is illegal and violates Section 9 of the Specific Relief Act, 1877, may well be a valid plea in the civil suit, but it does not constitute a ground to invoke extraordinary jurisdiction against an interim procedural order passed by the Rent Controller under a special statute.

16. It is further observed that allowing constitutional petitions against such interim directions would defeat the very objective of the special rent regime, which is designed to ensure expeditious and economical resolution of landlord-tenant disputes. Every procedural direction would then be subject to challenge before the High Court, leading to unnecessary delays and forum shopping.

17. Therefore, in light of the clear statutory bar under Section 21 of the Ordinance of 2001, and the judicial principles laid down by the Hon'ble Supreme Court regarding non-interference with interlocutory orders of statutory tribunals, I am of the considered view that the instant petition is not maintainable.

18. For what has been discussed above, the instant Writ Petition No.2385 of 2025 being not maintainable as well as devoid of any merit is hereby dismissed.

UN/155/Isl. Petition dismissed.

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